

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Paul Andrew 3020 BRIDGEWAY Sausalito CA 94965		To keep other people from seeing what you entered on your form, please press the Clear This Form button at the end of the form when finished.
TELEPHONE NO.: (650) 646-1925 FAX NO. (Optional): E-MAIL ADDRESS (Optional): Paul@innitstreetwear.com ATTORNEY FOR (Name): Self-Representing		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Merced STREET ADDRESS: 627 W 21st St MAILING ADDRESS: CITY AND ZIP CODE: Merced CA 95340 BRANCH NAME: Merced County Superior Court		
PLAINTIFF/PETITIONER: Paul Andrew DEFENDANT/RESPONDENT: ACME INC -		
DECLARATION		CASE NUMBER:

Declaration of Paul Andrew in Support of Claim

****MC-030 Declaration****

1. My name is Paul Andrew, and I am the plaintiff in this case.
2. On April 1, 2026, I brought my 2021 Mercedes-Benz CLA (VIN W1K5J4GB7MN123456) to the defendant, Acme Auto Repair, for diagnosis and engine work to address an engine "lifter noise."
3. Acme Auto Repair agreed to perform the diagnosis and engine work with the representation that the lifter noise would be corrected as part of the repair.
4. The agreement was documented in a written estimate and invoice bearing Invoice No. ACM-040126-117, and I paid \$5,000.00 via check for the work performed.
5. Acme Auto Repair released the vehicle to me on April 1, 2026, claiming the work had been completed and the issue resolved.
6. Immediately after leaving the shop, I noticed the same engine noise was still present.
7. Approximately two hours later, I returned to Acme Auto Repair with a witness, Janey Do Do, and informed them that the issue had not been resolved.
8. I requested that Acme Auto Repair either complete the repair to resolve the lifter noise as agreed or refund the \$5,000.00 I had paid.
9. Acme Auto Repair refused to perform any additional work and refused to issue a refund.
10. On April 2, 2026, I also sent an email to Acme Auto Repair requesting that they either complete the promised repair under their warranty or refund my payment.
11. Acme Auto Repair failed to respond to my email or provide the requested relief.
12. I am seeking a refund of \$5,000.00, the amount I paid for engine diagnosis and repair that failed to resolve the issue, as reflected in my contract and payment records.
13. Acme Auto Repair's failure to fix the engine noise or refund the payment violates their own 30-day written warranty, which guarantees labor and material associated with the repair.
14. I believe the \$5,000.00 refund is fair because the repair was ineffective, the issue remains unresolved, and I received no benefit from the \$5,000.00 payment of money to Acme Auto Repair.
15. Under California Civil Code § 1605, consideration requires either a benefit to the promisor or a detriment to the promisee. I experienced a detriment by paying \$5,000.00 for services that provided no repair benefit.
16. Under California Civil Code § 3287, I am entitled to recover interest on the \$5,000.00 from April 1, 2026, the date the obligation to refund my payment became due.
17. Under California Civil Code § 3289, I am entitled to 10% per annum interest on the unpaid amount from the date the refund

☐ Attorney for ☐ Plaintiff ☐ Petitioner ☐ Defendant
☐ Respondent ☐ Other (Specify):

EXHIBIT A

Document: 01_Acme_Original_Invoice_with_Warranty (1).docx

(Word document — print and attach this file separately)